Basic information

2023/0437(COD) COD - Ordinary legislative procedure (ex-codecision procedure) Regulation	Awaiting Council's 1st reading position
Transport: enforcement of passenger rights in the Union Amending Regulation 2004/261 2001/0305(COD) Amending Regulation 2006/1107 2005/0007(COD) Amending Regulation 2011/181 2008/0237(COD) Amending Regulation 2010/1177 2008/0246(COD) Amending Regulation 2021/782 2017/0237(COD) **Subject** 3.20.01 Air transport and air freight 3.20.02 Rail transport: passengers and freight 3.20.03 Maritime transport: passengers and freight 3.20.04 Inland waterway transport 3.20.05 Road transport: passengers and freight 4.60.06 Consumers' economic and legal interests	

Key players

European Parliament

Committee responsible	Rapporteur	Appointed
TRAN Transport and Tourism	RICCI Matteo (S&D)	16/09/2024
	Shadow rapporteur NOVAKOV Andrey (EPP) KRIŠTOPANS Vilis (PfE) ZŁOTOWSKI Kosma (ECR) OETJEN Jan-Christoph (Renew) MARZÀ IBÁÑEZ Vicent (Greens/EFA) SAEIDI Arash (The Left)	

Former committee responsible	Former rapporteur	Appointed
TRAN Transport and Tourism	VARIATI Achille (S&D)	14/02/2024

Committee for opinion	Rapporteur for opinion	Appointed
IMCO Internal Market and Consumer Protection	NÍ MHURCHÚ Cynthia (Renew)	02/10/2024

Former committee for opinion	Former rapporteur for opinion	Appointed
EMPL Employment and Social Affairs	The committee decided not to give an opinion.	
IMCO Internal Market and Consumer Protection		
JURI Legal Affairs	The committee decided not to give an opinion.	
LIBE Civil Liberties, Justice and Home Affairs	The committee decided not to give an opinion.	
PETI Petitions		

Council of the European Union

European Commission	Commission DG	Commissioner
	Mobility and Transport	VĂLEAN Adina

European Economic and Social Committee

European Committee of the Regions

Key events

Date	Event	Reference	Summary
29/11/2023	Legislative proposal published	COM(2023)0753	Summary
08/02/2024	Committee referral announced in Parliament, 1st reading		
13/11/2024	Resumption of business from the previous parliamentary term		
24/06/2025	Vote in committee, 1st reading		
24/06/2025	Committee decision to open interinstitutional negotiations with report adopted in committee		
04/07/2025	Committee report tabled for plenary, 1st reading	A10-0136/2025	Summary
07/07/2025	Committee decision to enter into interinstitutional negotiations announced in plenary (Rule 72)		
09/07/2025	Committee decision to enter into interinstitutional negotiations confirmed by plenary (Rule 72)		
02/09/2026	Approval in committee of the text agreed at 1st reading interinstitutional negotiations	GEDA/A/(2026)004646 PE791.098	
20/10/2026	Decision by Parliament, 1st reading	T10-0347/2026	

20/10/2026	Results of vote in Parliament		

Technical information

Procedure reference	2023/0437(COD)
Procedure type	COD - Ordinary legislative procedure (ex-codecision procedure)
Procedure subtype	Legislation
Legislative instrument	Regulation
Amendments and repeals	Amending Regulation 2004/261 2001/0305(COD) Amending Regulation 2006/1107 2005/0007(COD) Amending Regulation 2011/181 2008/0237(COD) Amending Regulation 2010/1177 2008/0246(COD) Amending Regulation 2021/782 2017/0237(COD)
Legal basis	Treaty on the Functioning of the European Union TFEU 100-p2
Other legal basis	Rules of Procedure EP 165
Mandatory consultation of other institutions	European Economic and Social Committee European Committee of the Regions
Stage reached in procedure	Awaiting Council's 1st reading position
Committee dossier	TRAN/10/00285

Documentation gateway

European Parliament

Document type	Committee	Reference	Date	Summary
Committee draft report		PE768.111	20/02/2025	
Amendments tabled in committee		PE771.913	01/04/2025	
Committee opinion	IMCO	PE766.984	23/05/2025	
Committee report tabled for plenary, 1st reading/single reading		A10-0136/2025	04/07/2025	Summary
Text agreed during interinstitutional negotiations		PE791.098	15/07/2026	
Text adopted by Parliament, 1st reading/single reading		T10-0347/2026	20/10/2026	

Council of the EU

Document type	Reference	Date	Summary
Coreper letter confirming interinstitutional agreement	GEDA/A/(2026)004646	15/07/2026	

European Commission

Document type	Reference	Date	Summary
Legislative proposal	COM(2023)0753	29/11/2023	Summary
	SWD(2023)0386		

Document attached to the procedure		30/11/2023	
Document attached to the procedure	SWD(2023)0387	30/11/2023	
Document attached to the procedure	SWD(2023)0389	30/11/2023	

National parliaments

Document type	Parliament /Chamber	Reference	Date	Summary
Contribution	CZ_SENATE	COM(2023)0753	18/03/2024	
Contribution	ES_PARLIAMENT	COM(2023)0753	18/03/2024	
Contribution	IT_CHAMBER	COM(2023)0753	25/04/2024	
Contribution	IT_CHAMBER	COM(2023)0753	20/02/2025	

Other institutions and bodies

Institution/body	Document type	Reference	Date	Summary
EESC	Economic and Social Committee: opinion, report	CES5130/2023	20/03/2024	

Additional information

Source	Document	Date
European Parliament	Briefing	24/09/2024
European Commission	EUR-Lex	

Meetings with interest representatives published in line with the Rules of Procedure

Rapporteurs, Shadow Rapporteurs and Committee Chairs

Transparency

Name	Role	Committee	Date	Interest representatives
ZŁOTOWSKI Kosma	Shadow rapporteur	TRAN	21/05/2026	AirHelp
ZŁOTOWSKI Kosma	Shadow rapporteur	TRAN	19/03/2026	Wizz Air Group
OETJEN Jan-Christoph	Shadow rapporteur	TRAN	15/01/2026	European Regions Airline Association Ltd.
MARZÀ IBÁÑEZ Vicent	Shadow rapporteur	TRAN	26/11/2025	BEUC - The European Consumer Organisation
MARZÀ IBÁÑEZ Vicent	Shadow rapporteur	TRAN	18/10/2025	Acumen Public Affairs

ZŁOTOWSKI Kosma	Shadow rapporteur	TRAN	14/10/2025	Polskie Linie Lotnicze "LOT" S.A.
MARZÀ IBÁÑEZ Vicent	Shadow rapporteur	TRAN	30/09/2025	AirHelp
SAEIDI Arash	Shadow rapporteur	TRAN	09/07/2025	European Transport Workers' Federation
ZŁOTOWSKI Kosma	Shadow rapporteur	TRAN	09/07/2025	Air France-KLM
MARZÀ IBÁÑEZ Vicent	Shadow rapporteur	TRAN	09/07/2025	Air France-KLM Air France
SAEIDI Arash	Shadow rapporteur	TRAN	08/07/2025	Flight Rights
SAEIDI Arash	Shadow rapporteur	TRAN	25/06/2025	European regional airlines association
MARZÀ IBÁÑEZ Vicent	Shadow rapporteur	TRAN	03/06/2025	International Air Transport Association
ZŁOTOWSKI Kosma	Shadow rapporteur	TRAN	22/05/2025	Bureau Européen des Unions de Consommateurs
MARZÀ IBÁÑEZ Vicent	Shadow rapporteur	TRAN	21/05/2025	Minister for Social Rights, Consumer Affairs and the 2030 Agenda European Union
ZŁOTOWSKI Kosma	Shadow rapporteur	TRAN	21/05/2025	AirHelp
SAEIDI Arash	Shadow rapporteur	TRAN	20/05/2025	Air France-KLM
MARZÀ IBÁÑEZ Vicent	Shadow rapporteur	TRAN	07/05/2025	eu travel tech
MARZÀ IBÁÑEZ Vicent	Shadow rapporteur	TRAN	10/04/2025	International Air Transport Association
MARZÀ IBÁÑEZ Vicent	Shadow rapporteur	TRAN	10/04/2025	International Air Transport Association
ZŁOTOWSKI Kosma	Shadow rapporteur	TRAN	08/04/2025	Airports Council International - European Region
SAEIDI Arash	Shadow rapporteur	TRAN	12/03/2025	European Regions Airline Association Ltd.
NOVAKOV Andrey	Shadow rapporteur	TRAN	19/02/2025	The Association of Bulgarian Tour Operators and Travel Agents (ABTTA)
NOVAKOV Andrey	Shadow rapporteur	TRAN	10/02/2025	European Disability Forum
NOVAKOV Andrey	Shadow rapporteur	TRAN	04/02/2025	International Air Transport Association
MARZÀ IBÁÑEZ Vicent	Shadow rapporteur	TRAN	30/01/2025	European Passengers Federation
JOUVET Pierre	Shadow rapporteur for opinion	IMCO	30/01/2025	European Disability Forum 57868523887-16
NOVAKOV Andrey	Shadow rapporteur	TRAN	27/01/2025	Global Travel Tech
NOVAKOV Andrey	Shadow rapporteur	TRAN	27/01/2025	ECTAA, Group of National Travel Agents' and Tour Operators' Associations within the EU
KUHNKE Alice	Shadow rapporteur for opinion	IMCO	27/01/2025	Bureau Européen des Unions de Consommateurs ECTAA, Group of National Travel Agents' and Tour Operators' Associations within the EU European Disability Forum European Passengers' Federation Verbraucherzentrale Bundesverband

				E Union international de
MARZÀ IBÁÑEZ Vicent	Shadow rapporteur	TRAN	24/01/2025	ECTAA, Group of National Travel Agents' and Tour Operators' Associations within the EU
NOVAKOV Andrey	Shadow rapporteur	TRAN	23/01/2025	International Air Transport Association
MARZÀ IBÁÑEZ Vicent	Shadow rapporteur	TRAN	21/01/2025	European Disability Forum
NOVAKOV Andrey	Shadow rapporteur	TRAN	21/01/2025	BEUC
MARZÀ IBÁÑEZ Vicent	Shadow rapporteur	TRAN	14/01/2025	ECTAA, Group of National Travel Agents' and Tour Operators' Associations within the EU
MARZÀ IBÁÑEZ Vicent	Shadow rapporteur	TRAN	11/12/2024	eu travel tech
SAEIDI Arash	Shadow rapporteur	TRAN	11/12/2024	Bureau Européen des Unions de Consommateurs
ZŁOTOWSKI Kosma	Shadow rapporteur	TRAN	09/12/2024	The European Consumer Organisation
JOUVET Pierre	Shadow rapporteur for opinion	IMCO	05/12/2024	Bureau Européen des Unions de Consommateurs 9505781573-45
ZŁOTOWSKI Kosma	Shadow rapporteur	TRAN	27/11/2024	Airlines for Europe
NOVAKOV Andrey	Shadow rapporteur	TRAN	06/11/2024	Airlines for Europe (A4E)
NOVAKOV Andrey	Shadow rapporteur	TRAN	05/09/2024	Ryanair Holdings
OETJEN Jan-Christoph	Shadow rapporteur	TRAN	02/04/2024	Allgemeiner Deutscher Automobil-Club e.V. Bundesverband Deutscher Omnibusunternehmen e. V. Community of European Railway and Infrastructure Companies ECTAA, Group of National Travel Agents' and Tour Operators' Associations within the EU European Disability Forum European Regions Airline Association Ltd. Ryanair Holdings SNCF Connect UITP - International Association of Public Transport
OETJEN Jan-Christoph	Shadow rapporteur	TRAN	22/02/2024	ACI Worldwide Airlines for Europe Association of Passenger Rights Advocates Booking.com B.V. Deutsche Bahn AG European Passengers' Federation Expedia Group Lufthansa Group TUI AG Verbraucherzentrale Bundesverband eu travel tech BEUC IATA IRU GBTA

Other Members

Transparency		
Name	**Date**	**Interest representatives**
BARLEY Katarina	08/09/2026	Deutscher Reiseverband e.V.

VIND Marianne	24/03/2026	Flightright GmbH
VIND Marianne	11/12/2025	Lead Agency A/S
HAIDER Roman	23/09/2025	Austrian Airlines Wirtschaftskammer Österreich
SAEIDI Arash	16/06/2025	Air France-KLM
HAIDER Roman	13/05/2025	ÖBB-Holding AG
KALFON François	30/04/2025	Airports Council International - European Region
NOVAKOV Andrey	18/04/2024	Ryanair Holdings

Transport: enforcement of passenger rights in the Union

2023/0437(COD) - 29/11/2023 - Legislative proposal

PURPOSE: to revise the Passenger Rights regulatory framework

PROPOSED ACT: Regulation of the European Parliament and of the Council.

ROLE OF THE EUROPEAN PARLIAMENT: the European Parliament decides in accordance with the ordinary legislative procedure and on an equal footing with the Council.

BACKGROUND: a number of amendments should be made to Regulation (EC) No 261/2004 establishing common rules on compensation and assistance to passengers in the event of denied boarding and of cancellation or long delay of flights, Regulation (EC) No 1107/2006 concerning the rights of disabled persons and persons with reduced mobility when travelling by air, Regulation (EU) No 1177/2010 concerning the rights of passengers when travelling by sea and inland waterway, Regulation (EU) No 181/2011 concerning the rights of passengers in bus and coach transport and Regulation (EU) 2021/782 on rail passengers' rights and obligations of the European Parliament and of the Council, in order to ensure effective protection of passengers' rights in the Union when travelling by air, rail, sea and inland waterways and bus and coach transport.

Simplification, consistency and harmonisation of the abovementioned Regulations is required especially as regards rules dealing with the information to passengers on their rights before and during the journey, enforcement of passenger rights and complaint handling for passengers. The existing rules in those Regulations should be amended to complement those of the recently adopted as regards forms to request reimbursements and compensation, service quality standards, obligations for carriers to share information with national enforcement bodies, and information of passengers by national enforcement bodies on alternative dispute resolution.

The revision of the Passenger Rights regulatory framework will help to **incentivise the use of collective modes of transport** and consequently also to implement the Green Deal.

CONTENT: the Commission is proposing to revise the Regulations on Passenger Rights to address shortcomings in implementation and enforcement which are preventing passengers from fully benefiting from these rights. It aims to address these shortcomings by strengthening the enforcement mechanisms and introducing rules for air passengers who booked their flights via an intermediary, including on reimbursement.

The proposal contains provisions concerning:

- the **reimbursement** when tickets were booked via an intermediary: where the passenger has bought a ticket through an intermediary, the operating air carrier may make the reimbursement through that intermediary. The passenger should be informed of the reimbursement process in a clear, comprehensible and easily accessible manner at the time of booking and on the booking confirmation. Reimbursement through the intermediary shall be free of charge for passengers and all other parties concerned. The air carrier should reimburse the intermediary within **seven days**, in one transaction through the same payment method which was used at the time of booking, and linking the payment to the original booking reference. The intermediary should reimburse the passenger via the original payment method, at the latest within a further seven days, and inform the passenger and the air carrier thereof;

- improving **information** to passengers on their rights at the time of booking and during journey disruptions should lead to enhanced awareness. Such information should be concise and made easily, prominently, and directly available. It should be provided in a clear and comprehensible manner, and by electronic means as far as possible;

- service quality standards: air carriers and airport managing bodies should establish service quality standards and implement a quality management system to maintain service quality;

- a **common form for reimbursement and compensation requests**: the Commission should adopt an implementing act establishing a common form for compensation and reimbursement requests. That common form should be established in a format which is accessible to persons with disabilities and persons with reduced mobility;

- risk-based approach to the **monitoring** of compliance: the national enforcement bodies should develop a compliance monitoring programme to monitor compliance of carriers, terminal operators, port authorities, travel agents, tour operators and ticket vendors with the obligations laid down in this Regulation based on a risk assessment. The programme should allow for the detection and correction of recurrent non-compliance in the implementation of passenger rights;

- **sharing of information** with national enforcement bodies and information about alternative dispute resolution ADR by national enforcement bodies;

- cooperation between Member States and the Commission and Passenger Rights Committee;

- means of **communication to passengers**: where information is provided by electronic means of communication, carriers, terminal operators, port authorities, travel agents, tour operators and ticket vendors should ensure that the passenger can keep any written correspondence, including the date and time of such correspondence, on a durable medium. All means of communication should enable the passenger to contact them quickly and communicate efficiently.

Transport: enforcement of passenger rights in the Union

2023/0437(COD) - 04/07/2025 - Committee report tabled for plenary, 1st reading/single reading

The Committee on Transport and Tourism adopted the report by Matteo RICCI (S&D, IT) on the proposal for a regulation of the European Parliament and of the Council amending Regulations (EC) No 261/2004, (EC) No 1107/2006, (EU) No 1177/2010, (EU) No 181/2011 and (EU) 2021/782 as regards enforcement of passenger rights in the Union.

The competent committee recommended that the European Parliament adopt its position at first reading by amending the Commission's proposal as follows.

As a reminder, the proposal seeks to revise regulations on passenger rights to address shortcomings in implementation and enforcement which are preventing passengers from fully benefiting from these rights.

The proposed amendments concern the following:

Extraordinary circumstances

To reduce the margin for interpretation as to what constitutes extraordinary circumstances that would allow airlines to deny compensation, a defined list of exceptions is laid down in Annex IIa, such as natural disasters, war, weather conditions or unforeseen labour disputes (excluding strikes by airline staff).

Transfer of tickets

The report suggested that passengers who, for exceptional reasons (such as death or serious medical problems), are no longer able to make a journey they have booked, should be entitled to request a change in the name of the ticket holder. Notification provided at least 72 hours prior to the flight should in all cases be considered reasonable and shall not be subject to any additional charge according to the new amendments.

Reduced mobility or special needs

Members considered that the rights of persons with disabilities and persons with reduced mobility should be prioritised. Families with young children are also recognised within this framework, ensuring equitable treatment and the availability of reasonable assistance.

According to the report, in cases of denied boarding, cancellation, delays of any length and missed flight due to a lack of airport assistance services, persons with disabilities and persons with reduced mobility and any persons accompanying them, as well as unaccompanied children, should all have the right to compensation, reimbursement or re-routing and the right to care as soon as possible.

Infants of less than 24 months and children under 12 years old should be considered special category of passengers (SCP) in accordance with the EU air safety legislation under Regulation 965/2012. **Allocation of seats for infants** with the accompanying passenger and for children under 12 years old next to the accompanying passenger, made under the same booking, should be provided free of charge by the air carrier.

Right to personal item and hand luggage

Passengers should always have the right to a carry-on board one personal item, such as a small bag, handbag, backpack or laptop bag under the condition that it can be safely stowed under the seat in front of the passenger. Air carriers should not charge the passenger any supplement or additional fees on top of the price of the flight ticket for this personal item. It is mandatory that carriers provide clear, transparent, and easily accessible information on the weight and dimension requirements for the personal item at the time of booking and after the booking is completed, ensuring passengers are fully informed before their journey.

Moreover, passengers should always have the right to carry on board, one piece of hand luggage. The hand luggage should not be subject to price supplement on the price of the flight ticket within the maximum dimensions of **100 cm** (sum of length, width, and height) and maximum weight of **7 kilos**. Air Carriers may apply different provisions regarding additional or larger hand luggage.

Obligation to inform passengers of their rights

The airport managing body and operating air carrier should ensure that at check-in, online and at the boarding gate, a **clearly legible notice** containing the following text is displayed in a manner clearly visible to passengers: "If you are denied boarding or if your flight is cancelled or delayed for at least two hours at departure, or of more than 3 hours at arrival at your final destination, ask at the check-in counter or boarding gate for the text stating your rights, particularly with regard to compensation and assistance".

Contact points

It is proposed that air carriers should set up, at each airport where they operate, **contact points** at which they should ensure the **presence of contact personnel** or a third parties commissioned by the air carrier concerned, to provide passengers with the necessary information regarding their rights, including complaint procedures, to assist them and to take immediate action in the event of cancelled or delayed flights, denied boarding and lost or delayed baggage. During the air carriers operating hours and until the last passengers disembark from the last plane, those contact points should be available for the purpose of assisting passengers inter alia concerning reimbursement, re-routing, rebooking and of accepting the lodging of their complaints.

Intermediaries

The proposed amendments clarify the role of intermediaries (ticket vendors or retailers) in reimbursing air passengers for cancelations, long delays or denied boarding. Members called for these companies to inform passenger at the time of booking about the full cost of an air ticket, intermediation or service fees, and the reimbursement process, which should not take longer than 14 days. Should an intermediary fail to respect this deadline, it would be up to the air carrier to process the reimbursement within seven days.

Common form for compensation and reimbursement requests

When a passenger has a right to compensation from the air carrier, the air carrier should send to the passenger in a written form, within 48 hours, the information about the presence or absence of extraordinary circumstances and provide access to a **pre-filled common form**.

Complaint-handling

Members considered that each carrier and terminal operator should set up an **accessible complaint-handling mechanism** for the rights and obligations covered by this Regulation in their respective fields of responsibility. At the time of booking, they should provide information to passengers on the complaint handling processes and the relevant time limits.